

Court No. - 40

Case :- WRIT - C No. - 11048 of 2025

Petitioner :- Shiv Mohan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Opendra Singh

Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Shekhar B. Saraf,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Heard learned counsel for the petitioner, the learned Standing Counsel appearing for the State and Sri Ishan Mishra, learned Advocate holding brief of Sri Manu Ghildyal, learned counsel appearing for the respondent Nos. 2 and 3, the Electricity Department.

The present petition has been filed primarily seeking a challenge the impugned notice dated 10.03.2025 passed by the respondent No. 3, the Executive Engineer Dakshinanchal Vidyut Vitran Nigam Ltd. Urja Bhawan, Agra. Further the petitioner, by way of the present writ petition, seeks a direction to the aforesaid respondent authority to make the assessment of the electricity bill and restore the electricity of the petitioner.

After hearing the parties, we find that the matter relates to electricity theft and that the petitioner is disputing the correctness of the bill amount that is being demanded by the respondent(s).

Learned counsel for the respondent(s) submits that for redressal of such grievance, the petitioner has an effective alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner could not dispute the same.

Accordingly, the petition stands **disposed of** with liberty granted to the petitioner to file an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If such an application is filed before the concerned respondent within a period of two weeks from today, the respondent authority shall consider the same and dispose it of within a period of six weeks from the date of filing of such application.

Order Date :- 15.4.2025

Arun K. Singh

[Dr. Y.K. Srivastava, J.] [Shekhar B. Saraf, J.]